

File No.: EXP202212569

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On 30/10/2022, a written submission was received by this Agency from A.A.A. (hereinafter, the complainant), through which a complaint is filed against AVENTURA EN TRAMPOLINES, S.L. with NIF B93528966 (hereinafter, AVENTURA EN TRAMPOLINES) for a possible breach of the provisions of personal data protection regulations.

The reasons for the complaint are as follows:

“On October 10, I attended a birthday party with my 7-year-old son that was held in a play park (Altitude Trampoline Park).

In order for my son to enter both the birthday table area and the play area (trampoline beds and other games), I had to sign an informed consent form in which, as the last point, it indicated that the company owned the images recorded by its cameras, which could register, distribute, use, modify, or print such images, for example in brochures, advertisements, publications, websites, etc. (point i of the informed consent). I was asking them to provide it to me in paper form so that I could mark that I did not consent to that point (they only do it electronically, which I do not know if that is legal) and they told me no, that if I did not sign everything, I could not enter and that they were not going to modify the consent. They gave me their word that the images would not be used for advertising purposes by the company and that they would not provide that in writing either. They indicated that all of this was to protect themselves in case parents recorded and then uploaded it to the Internet and social media. In the end, I signed the consent so that my son would not miss his friend's birthday.

[...]”

Along with the complaint, a copy of the informed consent form provided by AVENTURA EN TRAMPOLINES to its users is attached.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on 25/11/2022, the aforementioned complaint was forwarded to AVENTURA EN TRAMPOLINES, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) through electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on 09/12/2022, as stated in the certificate in the file.

Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, an informational copy was sent by postal mail which was duly notified on 12/12/2022. In this notification, the obligation to interact electronically with the Administration was reminded, and information was provided on the means of access to such notifications, reiterating that, henceforth, notifications would be made exclusively by electronic means. On 28/12/2022, it was delivered.

No response has been received to this forwarding letter.

THIRD: On 30/01/2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On 02/10/2023, the Director of the Spanish Agency for Data Protection agreed to initiate

sanctioning proceedings against AVENTURA EN TRAMPOLINES for the alleged infringement of Article 7 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), classified under Article 83.5.a) of the GDPR.

This initiation agreement, which was carried out in accordance with the rules established in the LPACAP through electronic notification, was not collected by AVENTURA EN TRAMPOLINES within the availability period, being understood as rejected on 13/10/2023; and the notification was reiterated by postal mail, which was delivered on 22/04/2024.

FIFTH: After the period granted for the submission of allegations has elapsed, it has been confirmed that no allegations have been received from AVENTURA EN TRAMPOLINES.

Article 64.2.f) of the LPACAP -provision of which the respondent was informed in the opening agreement of the procedure- establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution.

In this case, the initiation agreement of the sanctioning file determined the facts that specified the accusation, the infringement of the GDPR attributed to the respondent, and the sanction that could be imposed. Therefore, considering that the respondent has not made allegations against the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/10

In view of all the actions taken by the Spanish Agency for Data Protection in the present procedure, the following facts are considered proven,

PROVEN FACTS

FIRST: In the complaint dated 30/10/2022, the complainant states that AVENTURA EN TRAMPOLINES conditions access to its facilities on the signing of a form that authorizes the entity to capture images of users for advertising purposes; being obliged to grant consent for their minor child to access the premises.

SECOND: The document "User Agreement. Informed Consent and Assumption of Risk" submitted along with the complaint, which is not filled out, lists the conditions of use of the facilities. Regarding the matter of personal data protection, it states the following:

"(i) I authorize the owner of the park to capture my image and sounds in photographs, videos, recordings, or other types of media ("images"). I accept that the owner of the park will be the owner of such images and grant permission, without economic compensation in return, for the owner of the park or parties affiliated with the Altitude Trampoline Park brand to record, display, publish, distribute, use, modify, and print such images in any manner permitted by law, for example, in advertisements, brochures, publications, websites, social media, and other electronic media. This authorization does not include the use of my name alongside any image unless I authorize it in writing."

"PARTICIPANT: I confirm that I am of legal age.

If the participant is not of legal age, then the following consent from a parent or guardian must be read and signed prior to the participant's access to the park and its facilities.

PARENT OR GUARDIAN CONSENT.

I have read the terms of this WAIVER, RELEASE, AND ASSUMPTION OF RISK and accept its terms, statements, guarantees, notices, waivers, and releases unconditionally on my own behalf and on behalf of my child and/or ward, whose name is:

All terms, statements, guarantees, notices, waivers, and releases apply to my child or ward as if I were the participant. I understand that by signing this document, I waive important legal rights on my own behalf and on behalf of my child or ward regarding potential rights and claims against the owner of the park. I have had sufficient time to read this document in detail. I have read and understood it, and I agree that it is binding."

"Accept section 1"

LEGAL GROUNDS

I

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

4/10

Competence and procedure

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary issues

Article 4 "Definitions" of the GDPR defines the following terms for the purposes of the Regulation:

"1) 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

2) 'processing': any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination, or any other form of making available, alignment, combination, restriction, erasure, or destruction;

7) 'data controller' or 'controller': the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be provided for by the law of the Union or of the Member States;"

In the present case, according to Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, as AVENTURA EN TRAMPOLINES collects, among others, the following personal data of natural persons: name and surname, phone number, or personal image.

AVENTURA EN TRAMPOLINES carries out this activity in its capacity as data controller, as it determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

5/10

III

Legality of the processing of personal data

The principles governing the processing are enumerated in Article 5 of the GDPR. In this regard, paragraph 1 letter a) states that: "Personal data shall be:

a) Processed lawfully, fairly, and transparently in relation to the data subject (lawfulness, fairness, and transparency);

(...)"

The principle of legality is primarily regulated in Article 6 of the GDPR. The circumstances under which the processing of personal data is considered lawful are listed in Article 6.1 of the GDPR:

1. The processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is party or for the taking of steps at the request of the data subject prior to entering into a contract;
- c) the processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) the processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) the processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in letter f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.”

In this regard, Recital 40 of the GDPR states that “For processing to be lawful, personal data must be processed with the consent of the data subject or on another legitimate basis laid down by law, whether in this Regulation or by virtue of other Union or Member State law to which this Regulation relates, including the necessity of complying with a legal obligation to which the controller is subject or the necessity of performing a contract to which the data subject is party or for the taking of steps at the request of the data subject prior to entering into a contract.”

In this case, the legal basis that supports the processing of personal data collected by AVENTURA EN TRAMPOLINES through its form is the consent granted by the data subjects.

IV

Consent of the data subject

Article 4.11 of the GDPR defines the consent of the data subject as “any freely given, specific, informed, and unambiguous indication of the data subject’s wishes by which they, by a statement or by a clear affirmative action, signify agreement to the processing of personal data relating to them.” In this regard, Article 6.1 of the LOPDGDD understands consent as “any freely given, specific, informed, and unambiguous indication of the data subject’s wishes by which they, by a statement or by a clear affirmative action, signify agreement to the processing of personal data relating to them.”

For its part, Article 7 “Conditions for consent” of the GDPR establishes:

- “1. When the processing is based on the consent of the data subject, the controller shall be able to demonstrate that the data subject has consented to the processing of their personal data.
2. If the consent of the data subject is given in the context of a written declaration which also relates to other matters, the request for consent shall be presented in such a way that it is clearly distinguishable from the other matters, in an intelligible and easily accessible form and using clear and plain language. No part of the declaration which constitutes an infringement of this Regulation shall be binding.
3. The data subject shall have the right to withdraw their consent at any time. The withdrawal of consent shall not affect the lawfulness of processing based on consent before its withdrawal. Before giving consent, the data subject shall be informed thereof. It shall be as easy to withdraw consent as to give it.
4. When assessing whether consent has been freely given, account shall be taken, as far as possible, of whether, among other things, the performance of a contract, including the provision of a service, is conditional on consent to the processing of personal data that is not necessary for the performance of that contract.”

In light of the documentation in the administrative file, it is noted that the “Informed Consent and Assumption of Risk” form provided by AVENTURA EN TRAMPOLINES to its users includes, among other things, consent for: “capturing my image and sounds in photographs, videos, recordings, or other types of...”

supports ("images"). I accept that the owner of the park will be the holder of such images and grant permission, without economic compensation in return, for the owner of the park or parties affiliated with the Altitude Trampoline Park brand, to record, display, publish, distribute, use, modify, and print said images in any manner permitted by law, for example, in advertisements, brochures, publications, websites, social media, and other electronic media. This authorization does not include the use of my name alongside any image, unless I authorize it in writing. Furthermore, since the claimant's child is under 14 years of age, consent must be provided by the holder of parental authority or guardianship, in accordance with Article 7 of the LOPDGDD.

While it is true that the claimant acknowledges having signed and, consequently, accepted all that is stipulated in the form; it is evident that the consent granted is flawed from the moment that two of the aforementioned prerequisites, that it be free and specific, are not met.

Consent must be given freely, meaning that the interested party must have true or free choice. In this case, it is understood that this circumstance does not occur since AVENTURA EN TRAMPOLINES conditions access to its facilities on the signing of the form, as can be inferred from the following clause: "if the participant is not of legal age, then the following consent from a parent or guardian must be read and signed prior to the participant's access to the park and its facilities" (the underlining corresponds to this Agency).

Thus, interested parties are compelled to give their consent for treatments that are not necessary for the service offered by the entity being claimed, such as the capture of images for advertising purposes. Additionally, at the end of the form, there is only a single box to check "Accept section 1" without an option to decline.

On the other hand, the consent that AVENTURA EN TRAMPOLINES collects through the form is not specific for the processing of personal data, as it does not differentiate from other matters. The document not only informs about issues related to the protection of personal data but also about the assumption of risk.

Consequently, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered that the known facts constitute an infringement, attributable to AVENTURA EN TRAMPOLINES, for violation of Article 7 of the GDPR.

V

Classification and qualification of the infringement of Article 7 of the GDPR

The aforementioned infringement of Article 7 of the GDPR involves the commission of the infringement typified in Article 83.5 of the GDPR which under the heading "General conditions for the imposition of administrative fines" states:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

For the purposes of the limitation period, Article 72.1 "Very serious infringements" of the LOPDGDD indicates:

"1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall prescribe after three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

c) The failure to comply with the requirements set forth in Article 7 of Regulation (EU) 2016/679; (...)"

VI

Sanction for the infringement of Article 7 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered that the balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, regarding the infringement committed by violating what is established in Article 7 of the GDPR allows for the imposition of an administrative fine of €2,000 (two thousand euros).

VII

Adoption of measures

It is deemed appropriate to order AVENTURA EN TRAMPOLINES to, within one month, adapt the form "User Agreement. Informed Consent and Assumption of Risk" to the regulations on the protection of personal data so that the consent granted by users complies with the established prerequisites; in accordance with what is established in the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, when appropriate, in a specific manner and within a specified period..."

It is warned that failure to comply with the requirements of this agency could be considered an administrative infringement in accordance with the provisions of the GDPR,

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

9/10

classified as an infringement in its article 83.5 and 83.6, such conduct may lead to the initiation of further administrative sanctioning procedures.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on AVENTURA EN TRAMPOLINES, S.L., with NIF B93528966, for an infringement of article 7 of the GDPR, classified in article 83.5 of the GDPR, a fine of €2,000 (two thousand euros).

SECOND: TO ORDER AVENTURA EN TRAMPOLINES, S.L., with NIF B93528966, to prove to this Agency within one month that it has adapted the form "User Agreement. Informed Consent and Assumption of Risk" to the personal data protection regulations so that the consent granted by users complies with the requirements established therein.

THIRD: TO NOTIFY this resolution to AVENTURA EN TRAMPOLINES, S.L.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

The sanctioned party is warned that they must fulfill the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of article 98.1.b) of the LPACAP, within the voluntary payment period established in article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No. IBAN:

ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A.

Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next

business day.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with article 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in article 16.4 of the LPACAP. They must also provide the Agency with documentation proving the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

938-21112023

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es